



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-21-00033 Whitney Ranch, 3rd Filing Zone Change
Date: March 8, 2021

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 3/8/2021
- Public Services Committee 3/16/2021
- Second reading 3/22/2021
- Public Services Committee 4/6/2021
- Third and final reading 4/12/2021

Related Items:

- Whitney Ranch, 3rd Filing Annexation (UDC-21-00032)
- Whitney Ranch, 3rd Filing Final Plat (UDC-21-00034)

Planning Commission Recommendation:

The Planning Commission heard this item at their March 1, 2021 meeting and **unanimously** recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM COUNTY A-2 AGRICULTURAL TO MR MEDIUM-DENSITY RESIDENTIAL FOR LAND LOCATED NORTH OF DELL RANGE BOULEVARD, WEST OF WHITNEY ROAD."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment ("zone change") for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on March 1, 2021, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as:

A parcel of un-platted land being situated in a portion of the southwest one-quarter of Section 23, Township 14 North, Range 66 West of the Sixth Principal Meridian. the exterior boundary of said parcels being more particularly described by metes and bounds as follows: commencing at the City of Cheyenne control point "Dell Range." thence N72°33'00"W a distance of 4993.09' to a point on the northerly line of Whitney Ranch 1st Filing, said point also being the northeast corner of Lot 8 Block 3 of Whitney Ranch 1st Filing, thence along said line N89°47'53"W a distance of 531.87' to a point and also being the true point of beginning; thence continuing along the said north line of Whitney Ranch 1st Filing N89°47'53"W a distance of 2660.39' to a point on the west line of the southwest quarter Section 23, thence along the west line of said southwest quarter N00°03'31"E a distance of 891.37' to a point, thence leaving the west line of said southwest quarter S89°56'29"E a distance of 504.64' to a point, thence S00°12'07"W a distance of 322.63' to a point, thence S89°47'53"E a distance of 775.97' to a point, thence N00°05'24"E a distance of 129.04' to a point, thence S89°54'36"E a distance of 404.12' to a point, thence S00°05'24"W a distance of 215.93' to a point, thence S89°13'38"E a distance of 550.85' to a point, thence N90°00'00"E a distance of 56.99' to a point, thence S00°05'24"W a distance of 167.73' to a point, thence S89°58'29"E a distance of 371.45' to a point, thence S00°13'50"W a distance of 273.61' plus or minus to the true point of beginning

is hereby changed to MR Medium-density Residential.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication, and upon the official filing of the affiliated Whitney Ranch, 3rd Filing Annexation Map with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____



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CITY OF CHEYENNE PLANNING COMMISSION

MARCH 1, 2021

STAFF REPORT

FILE: UDC-21-00033: Whitney Ranch, 3rd Filing

REQUEST: A request to rezone approximately 35.7 acres of land from County A-2 Agricultural to MR Medium Density Residential

LOCATION: North of Dell Range Boulevard, west of Whitney Road

APPLICANT: Whitney Ranch, LLC

AGENT: Brad Emmons, AVI, PC

OWNER: Gysel Whitney, LLC

ZONING: County A-2 Agricultural

FUTURE LAND USE: Urban Residential

PURPOSE: To allow residential development and give land a City zone in concert with annexation.

PREPARED BY: Seth Lloyd, Planner II - Development



RECOMMENDED MOTION:

Move to **approve** the rezoning of a portion of the southwest quarter of Section 23, Township 14 North, Range 66 West, of the 6th P.M., Cheyenne, Wyoming from County A-2 Agricultural to MR Medium Density Residential as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from County A-2 Agricultural to MR Medium Density Residential for 35.7 acres of vacant land to be developed as a single-unit residential potentially including single-family homes and duplexes, with associated streets and open areas.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Urban Residential	County A-2	Undeveloped
North	Urban Residential	County A-2	Undeveloped
South	Urban Residential	MR	Single-family Residential
East	Urban Residential	County A-2	Undeveloped
West	Urban Residential	MR	Single-family Residential

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary and existing infrastructure exists in the neighborhoods to the south and west. Development will require infrastructure extensions and improvements.

The Future Land Use Designation for this property is Urban Residential on the Future Land Use Map updated by Connect 2045. The optimal zoning for the proposed future land use designation is any of the residential zones, including the MR zone.

The proposed zone change is in accordance with the plans and policies outlined in PlanCheyenne and **complies** with review criterion 1.

- 2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)**

The existing zoning to the south and west is mostly MR and within the City limits of Cheyenne. The proposed MR zone would be consistent with the current City zoning. The Future Land Use Map, as updated by Connect 2045, encourages Urban Residential type development in this area. The MR zone is considered one of the optimal zones for Urban Residential style development.

The proposed zone change for the subject property **complies** with review criterion 2.

- 3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)**

The current County A-2 zone allows limited development options and is intended for low-intensity uses. Generally, parcels in this zone district are not expected to connect to urban services. The proposed annexation and zone change to MR would allow the land to develop with urban-style residential uses with connections to urban services (such as water and sewer).

In order to develop under City jurisdiction, a City zone is required.

The proposed zone change **complies** with review criterion 3.

- 4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)**

The MR zoning allows larger blocks with anticipated residential development. The subject property is topographically challenging, and areas likely would qualify for the natural feature exception when platted. The approved Preliminary Plat for this area single-family

The proposed zone change for the subject property **complies** with review criterion 4.

- 5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)**

The MR zone is intended to develop with primarily residential uses, including a mix of density and dwelling types within a neighborhood. Full access to public infrastructure and city services is expected. The MR zone is applicable to Urban Residential areas where more compact neighborhood development patterns are desired. The subject property will require the extension of City services, but such services are stubbed out to the property. The property is in an area designated Urban Residential.

The proposed zone change for the subject property **complies** with review criterion 5.

- 6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)**

The applicant is seeking the proposed zone change in concert with an annexation. The surrounding properties which are within City limits are all zoned MR, and this application proposes MR zoning for the annexed land. The applicant has submitted a specific development proposal (a concurrent plat); however, should the specific development proposed with this zone change not be executed after approval, the MR zoning is an appropriate zone for this area of the community and multiple residential development options would be available for other applicants.

The proposed zone change **complies** with review criterion 6.

- 7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)**

No reviewing agencies provided concerns or recommendations regarding the proposed zone change.

The proposed zone change for the subject property **complies** with review criterion 7.

- 8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)**

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is in an area covered by the following plans:

- PlanCheyenne

The application conforms to PlanCheyenne per the discussion with Review Criterion 1.

STAFF REVIEW:

Through the review process, no issues were identified by staff, and no comments were received.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d) The zoning map amendment application is consistent with the zoning of surrounding properties and responds to current market demands for the subject property. The zone change meets the review criteria of UDC 2.2.1.(d); therefore, staff recommends approval of the zoning map amendment as submitted by the applicant.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

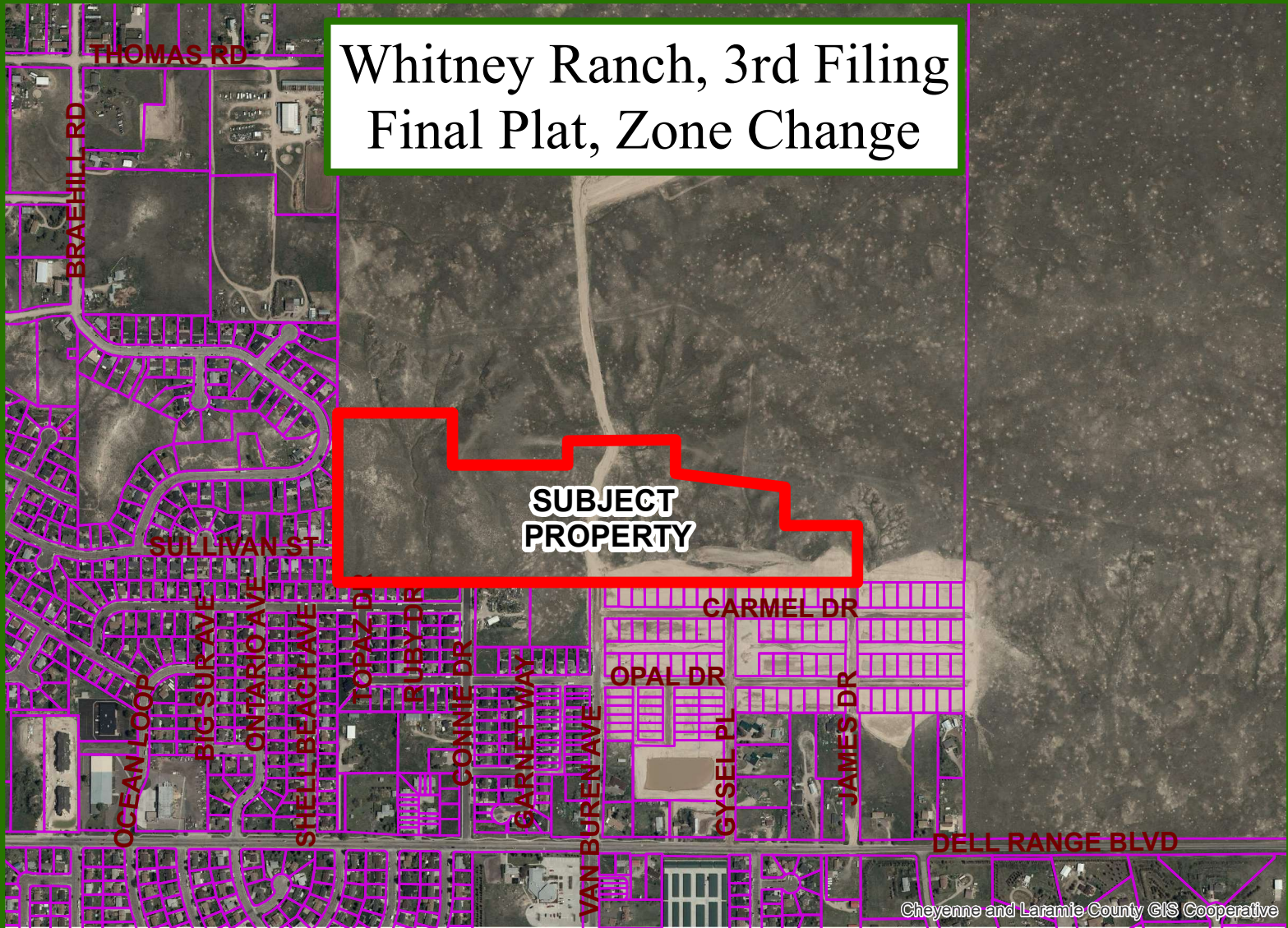
STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from County A-2 to MR.

ATTACHMENTS:

1. Aerial, Zoning, and Land Use Plan Map
2. Master Application
3. Applicant Provided Zone Change Map

Whitney Ranch, 3rd Filing Final Plat, Zone Change

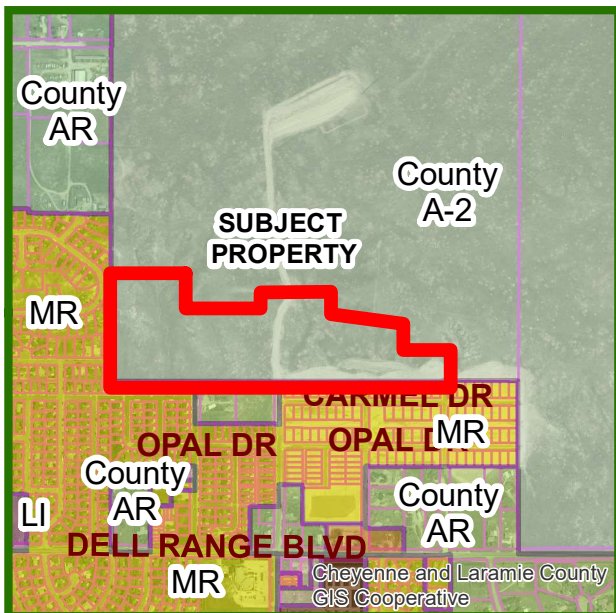


Application Number
Final Plat, Zone Change
UDC-21-00033
UDC-21-00034

Applicant: AVI, PC
Brad Emmons, AICP
Owner: Gysel Whitney, LLC

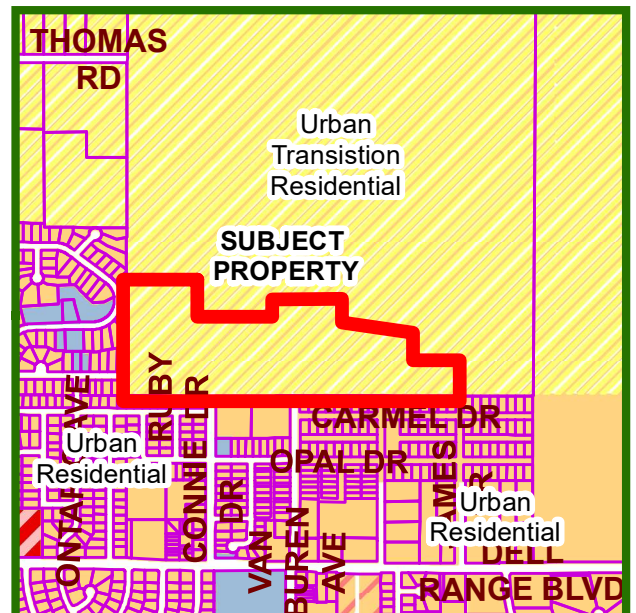
0 800 1,600
Feet
Scale applies to above map only

Current Zoning



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use



Planning and Development: Zoning Map Amendment Application

Submission date: **27 January 2021, 3:55PM**

Receipt number: **7**

Related form version: **9**

General Information

Applicant Name: **Whitney Ranch LLC**

Applicant Address: **6636 Cedar Ave S Suite 300**

Applicant City: **Richfield**

Applicant State: **MN**

Applicant Zip Code: **55423**

Applicant Phone: **6126192200**

Applicant Email: **ross@guadianmn**

Representative Name: **AVI - Brad Emmons**

Representative Address: **1103 Old Town Lane #101**

Representative City: **Cheyenne**

Representative State: **WY**

Representative Zip Code: **82009**

Representative Phone: **+13076376017**

Representative Email: **emmons@avipc.com**

Owner Name: **Gysel Whitney LLC**

Owner Address: **PO BOX 72**

Owner City:	Albin
Owner State:	WY
Owner Zip Code:	82050
Owner Phone:	3072463294
Owner Email:	bholgerson@rtconnect.net
Who is the primary contact regarding this application?	Representative
Letter of Authorization	loa_gysel_whitney_001.pdf
Project Location (Street Address or General Location):	East of Sullivan street west of van buren
Assessor's Parcel ID number(s)	Portion of R0018370
Total Project Area	35.69
Existing Zoning	Other: County A-2
Requested Zoning	MR - Medium-density Residential

Application-Specific Questions

Written Statement	Zoning to correspond with Whitney Ranch 3rd Filing
Zoning Map	4253_FINAL PLAT 1-25-2020-ZONE CHANGE MAP.pdf
Notification Letter	Whitney Ranch Phase 2 neighbor notification_.docx Whitney Ranch Phase 2 neighbor notification.pdf
Supporting Documents / Information	4253_FINAL PLAT 1-25-2020-FINAL PLAT.pdf

Review Criteria

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.	Acknowledgement of this review criteria
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The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

Acknowledgement of this review criteria

The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.

Acknowledgement of this review criteria

The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.

Acknowledgement of this review criteria

The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

Acknowledgement of this review criteria

The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

Acknowledgement of this review criteria

The review and recommendations of other reviewing bodies

Acknowledgement of this review criteria

Whether the application will harm the public health, safety, or general welfare.

Acknowledgement of this review criteria

Signature / Certification

Applicant Signature

Name of signatory: Brad Emmons



[Uploaded signature image: brad emmons.jpg](#)

Please enter an email address for an email receipt.

emmons@avipc.com

